

1 \_\_\_\_\_ BILL NO. \_\_\_\_\_

2 INTRODUCED BY \_\_\_\_\_

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4 A BILL FOR AN ACT ENTITLED: "AN ACT PROVIDING FOR THE DETERMINATION OF WHETHER AN  
5 INDIVIDUAL IS ALIVE; AND AMENDING SECTION 50-22-101, MCA."

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7 BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

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9 **Section 1.** Section 50-22-101, MCA, is amended to read:

10 **"50-22-101. Determination of death alive or dead.** (1) An individual who has active circulatory  
11 functions, active respiratory functions or potential for respiratory functions, or active brain functioning possesses  
12 the expectation of continuing life and must be considered alive or with life.

13 (2) \_\_\_\_\_ An individual who has sustained either irreversible cessation of circulatory and respiratory  
14 functions or irreversible cessation of all functions of the entire brain, including the brainstem, is dead. A  
15 determination of death must be made in accordance with accepted medical standards."

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17 NEW SECTION. **Section 2. Severability.** If a part of [this act] is invalid, all valid parts that are  
18 severable from the invalid part remain in effect. If a part of [this act] is invalid in one or more of its applications,  
19 the part remains in effect in all valid applications that are severable from the invalid applications.

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